

48

P R E S S R E L E A S E

OFFICE OF THE UNITED STATES ATTORNEY

SOUTHERN DISTRICT OF CALIFORNIA

San Diego, California

September 14, 1992

For further information, call:
Assistant U.S. Attorney Phillip L.B. Halpern
(619) 557-5165

NEWS RELEASE SUMMARY

The United States Attorney for the Southern District of California, William Braniff, announced today that internationally recognized steroid "guru" Daniel Duchaine was sentenced last Friday to a year and a day in prison on the basis of a probation violation.

Braniff stated that Duchaine was originally indicted in the Southern District of California in May 1987 for his role in masterminding the largest counterfeit steroid operation ever uncovered in this country. The 110-count indictment charged 34 individuals and two corporations with a variety of offenses relating to a complex conspiracy designed to manufacture, smuggle, and distribute a wide assortment of counterfeit anabolic steroids.

According to Assistant U.S. Attorney Phillip L.B. Halpern, Duchaine came to national prominence as a result of his long time efforts promoting the use of anabolic steroids and other illegal performance enhancing substances. Among his more popular publications, Duchaine has written the "Underground Steroid Handbook" (1987), the "Underground Steroid Handbook II" (1989), the

"Steroid Handbook Update" (1992), and the "Ultimate Muscle Mass Handbook" (1991). In his publications, Duchaine counseled a vast subculture on the use and effects of a broad range of illegal performance enhancing substances. As a result of his notoriety, Duchaine has advocated the illicit use of anabolic steroids on 60 Minutes, 20/20, Nightline, ESPN, and during interviews with a variety of international publications.

On February 13, 1989, Duchaine was originally sentenced to a three year prison term as a result of trafficking in anabolic steroids. In addition, he was placed on five years probation commencing with his release from custody. Following his release from prison, Duchaine once again began doing more than simply advocating the use of steroids through his writings. Indeed, he began selling and holding for sale the unapproved drugs Clenbuterol and Gamma Hydroxybutyrate (better known as "GHB"). Clenbuterol is used in foreign countries as a veterinary drug, while GHB is a chemical solvent that when ingested by humans acts as a respiratory depressant (the use of GHB has resulted in numerous individuals lapsing into coma-like states). Both substances were being marketed to athletes through the underground blackmarket.

As a result of his continued illegal sale of performance enhancing substances, Duchaine was indicted in the Central District of California. On April 17, 1992, Duchaine was found guilty of, among other things, conspiracy to defraud the United States and introducing misbranded drugs (Clenbuterol and GHB) in interstate commerce. On July 28, 1992, he was sentenced on these charges to

24 months in custody.

On the basis of this conviction, Duchaine admitted violating the terms of his probation in the Southern District of California. Due to his flagrant disregard for the laws established in this country to ensure the safety and effectiveness of the nation's drug supply, AUSA Halpern requested that the Court sentence Duchaine to an additional year in custody. In agreeing to impose an additional one year prison term, the Honorable Gordon Thompson, Jr., stated that he recognized defendant resented "regulatory bodies like the FDA...which [the defendant believed] constantly tried to control our lives." However, Judge Thompson made it clear that in a civilized society "these controls have to occur, and we as citizens have to live by them whether we like it or not."

According to his defense counsel, Nancee Schwartz, Duchaine plans on moving to England following his release from prison.

DEFENDANT

Daniel Duchaine (Age 39)

325 Vernon, Apt. 2

Venice, California

SUMMARY OF CHARGES

Indictment No: 87-0451-GT

Violations & Maximum Penalties:

Count 1: Conspiracy (5 years and/or a \$250,000 fine)

AGENCIES

The Food and Drug Administration

The United States Customs Service